

25STLC007768 25STLC007768

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-19

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C08%2F19%2F2026

Source SHA-256: 60cc0560523c497d1fbaaba518f451e8ca41fe30bbb468495465c829f8085c7e

Case Number: 25STLC007768 Hearing Date: August 19, 2026 Dept: 25

HEARING DATE: Wed., August 19, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: State

Farm Mutual Automobile Insurance Company v. Barragan, et al.

COMP FILED: 10-10-25

CASE NUMBER: 25STLC07768

NOTICE: OK

PROCEEDINGS: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY:

Plaintiff State Farm Mutual

Automobile Insurance Company

RESP. PARTY: None

MOTION TO DEEM REQUESTS FOR ADMISSION

ADMITTED; REQUEST FOR SANCTIONS

(CCP § 2033.280)

TENTATIVE RULING:

The Court GRANTS State

Farm Mutual Automobile Insurance Company's motion to deem matters admitted. The contents of State Farm's first set of

requests for admission are deemed admitted.

Yuritzi Betancio

Perez must pay State Farm \$460.00 within 30 days of this order.

State Farm is to
give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: None
filed as of August 13, 2026 [] Late [X]
None

REPLY: None
filed as of August 13, 2026 [] Late [X]
None

ANALYSIS:

State Farm Mutual Automobile Insurance Company filed this
subrogation action against Maritza Barragan and Yuritzi Betancio Perez. Barragan defaulted and Perez answered. State
Farm then propounded eight requests for
admission on Perez. Perez failed to
respond, so State Farm now moves to have the requests deemed admitted.

A party must respond to requests for
admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) If a party fails to do so, it
waives the
right to object, and the propounding party may move for an order that the
genuineness of any documents and truth of any matters specified in the requests

be deemed admitted. (Id., §
2033.280, subd. (a), (b).)

State Farm served Perez with the
requests for admission in January 2026.

To date, no responses have been served.

Perez has not filed an opposition indicating otherwise. Accordingly,
the Court GRANTS State Farm's motion and the contents of State Farm's first set
of requests for admission are deemed admitted.

Perez must also pay sanctions for causing State Farm to
move to deem the requests for admissions admitted. (Code Civ. Proc., § 2033.280, subd. (c).) State Farm requests
\$460.00—for two
hours of its counsel's work at \$200.00 per hour plus \$60.00 in filing fees—from
Perez. The Court finds this request
reasonable. Perez must pay State Farm \$460.00
within 30 days of this order.

State Farm is to give notice.